

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201504416	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/01/2015 11:15 AM	Location of Incident: W/B East 173rd Street and Washington Avenue		18 Mo. SOL 12/1/2016		Precinct: 42
Date/Time CV Reported Mon, 06/01/2015 2:52 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/01/2015 2:52 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Enmanuel Rodriguezmarte	04091	952173	042 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Jenny Sarita	10685	944984	042 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Enmanuel Rodriguezmarte	Discourtesy: PO Enmanuel Rodriguezmarte spoke rudely to § 87(2)(b)			A . Unsubstantiated	

Case Summary

§ 87(2)(b) filed this complaint on June 1, 2015 via phone with the CCRB.

On June 1, 2015, at approximately 11:15 a.m., § 87(2)(b) was driving a fuel truck on East 173rd Street near Washington Avenue in the Bronx. § 87(2)(b) saw a marked RMP double parked on the right side of the street. § 87(2)(b) attempted to pass the RMP on the left side. While trying to pass, § 87(2)(b) was stopped by PO Enmanuel Rodriguezmarte. § 87(2)(b) did not believe that he had hit the RMP. PO Rodriguezmarte approached § 87(2)(b) and allegedly said, “Are you fucking stupid?” (**Allegation A**). PO Rodriguezmarte asserted that § 87(2)(b) had hit the RMP. § 87(2)(b) was issued two summonses by PO Rodriguezmarte.

Mediation, Civil and Criminal Histories

- This case was eligible for mediation and it was accepted by § 87(2)(b) during his in-person interview (Board Review 01). This case was returned to investigations on July 6, 2015 because PO Rodriguezmarte rejected mediation.
- On July 22, 2015, a Notice of Claim request was filed and will be added to the case file upon receipt (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b) third CCRB complaint (Board Review 04).
- PO Rodriguezmarte has been a member of the service for three years. This is PO Rodriguezmarte’s second CCRB complaint. PO Rodriguezmarte has two previous allegations, including an unsubstantiated discourtesy allegation (Board Review 05).

Findings and Recommendations

Allegation A -Discourtesy: PO Enmanuel Rodriguezmarte spoke rudely to § 87(2)(b)

§ 87(2)(b) testified that he is employed as a commercial truck driver (Board Review 01). On the incident date, § 87(2)(b) was driving a commercial fuel trunk toward an EMS battalion on Washington Avenue in the Bronx. While driving on East 173rd Street, § 87(2)(b) observed a marked RMP double parked on the right side of the road. The officers in the RMP appeared to be writing a report for a woman in a black sedan which was parked next to the RMP. § 87(2)(b) judged that there was enough room to pass the RMP on the left side and attempted to do so. § 87(2)(b) heard the RMP’s sirens and stopped his vehicle. PO Rodriguezmarte approached § 87(2)(b) and allegedly yelled, “Are you fucking stupid?” § 87(2)(b) provided his credentials to PO Rodriguezmarte who returned to the RMP. § 87(2)(b) exited his vehicle to ask PO Rodriguezmarte for permission to run to the EMS battalion to inform them that he would be late. PO Rodriguezmarte told § 87(2)(b) not to do so. PO Rodriguezmarte issued § 87(2)(b) one summons for failing to exercise due care while approaching an emergency vehicle and one summons for dangerous driving (Board Review 06).

During his interview, § 87(2)(b) stated the officers appeared to be working on a report for a woman parked next to them. This woman, § 87(2)(b) was identified by an event report at the incident location which also had her phone number (Board Review 07). A phone statement was obtained from § 87(2)(b) on July 9, 2015 (Board Review 08). § 87(2)(b)

was involved in an unrelated traffic accident at the incident location. § 87(2)(b) saw § 87(2)(b) truck attempting to pass the RMP. § 87(2)(b) heard scraping which made her think the truck hit the RMP. § 87(2)(b) saw PO Sarita exit the RMP to speak with § 87(2)(b) § 87(2)(b) exited his vehicle and was yelling at the officers. § 87(2)(b)'s window was up and there was noise from the truck so she did not hear everything that was said between § 87(2)(b) and the officers. When § 87(2)(b) left the incident location, the officers were still dealing with § 87(2)(b) § 87(2)(b) did not hear any officer curse at § 87(2)(b) while she was at the incident location.

PO Sarita testified that § 87(2)(b) oil tanker hit the RMP's left sideview mirror while attempting to pass on the left side (Board Review 09). PO Rodriguezmarte was yelling, "Stop" to get § 87(2)(b) to stop his vehicle. If § 87(2)(b) had continued moving forward, the RMP's sideview mirror would have broken off. PO Rodriguezmarte approached § 87(2)(b) and asked him for his credentials. PO Sarita was standing behind PO Rodriguezmarte. § 87(2)(b) was not compliant with this request. § 87(2)(b) was yelling and cursing at PO Rodriguezmarte. After one or two minutes, § 87(2)(b) complied with the request to provide his credentials. PO Rodriguezmarte and PO Sarita returned to the RMP. § 87(2)(b) exited his vehicle and started walking toward Washington Avenue. PO Sarita told § 87(2)(b) not to leave his vehicle. § 87(2)(b) returned to his vehicle. PO Rodriguezmarte and PO Sarita exited their RMP to give § 87(2)(b) a summons. PO Rodriguezmarte never said, "Are you fucking stupid." PO Rodriguezmarte never cursed at § 87(2)(b).

PO Rodriguezmarte testified that he and PO Sarita were completing an accident report for another complainant near the incident location (Board Review 10). A truck approached behind the RMP and attempted to pass on the left side. The truck hit the sideview mirror on the driver's side of the RMP. PO Rodriguezmarte honked his horn repeatedly, waved at the driver, and yelled "Stop" to get the driver of the truck to stop. If the truck had continued, PO Rodriguezmarte thought the sideview mirror would have been knocked off. PO Rodriguezmarte approached the driver of the truck and asked, "What are you doing?" § 87(2)(b) was flailing his arms, speaking loudly, and cursing at PO Rodriguezmarte. PO Rodriguezmarte asked for § 87(2)(b) credentials but he was not compliant. PO Rodriguezmarte asked two or three times before § 87(2)(b) produced his license and registration. PO Rodriguezmarte and PO Sarita returned to the RMP to write a summons. § 87(2)(b) exited his vehicle and approached the RMP. § 87(2)(b) was complaining about being issued a summons. § 87(2)(b) also stated he had to make a delivery and walked away around the corner. PO Rodriguezmarte told § 87(2)(b) not to leave his vehicle. § 87(2)(b) was gone for approximately five minutes. PO Rodriguezmarte issued § 87(2)(b) two summonses. PO Rodriguezmarte never said, "Are you fucking stupid?" to § 87(2)(b). PO Rodriguezmarte never cursed at § 87(2)(b) during this interaction. PO Rodriguezmarte also summarized this incident in his memo book (Board Review 11). PO Rodriguezmarte's memo book notes that the RMP was parked with the emergency lights engaged. A Mack tank containing flammable liquid attempted to pass on the left dangerously close to the RMP. The tank struck the sideview mirror causing it to turn inwards. § 87(2)(b) was issued two summonses.

Patrol Guide procedure 203-09 states that officers must be "courteous and respectful" in their conduct with the public (Board Review 12).

§ 87(2)(g)

[REDACTED]. Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: 8

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date